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Civil Aviation Act, 2015

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Amending Acts

Date of Royal Seal and Publication

1. Some Nepal Laws (Amendment and Re-organization) Act, 2020 2020.11.16
2. Civil Aviation (First Amendment) Act, 2023 2023.05.24
3. Civil Aviation (Second Amendment) Act, 2030 2030.05.15
4. Civil Aviation (Third Amendment) Act, 2034 2034.06.06
5. Administration of Justice Act, 2048 2048.02.16
6. Civil Aviation (Fourth Amendment) Act, 2053 2053.08.05

Certification and Publication Date

7. Some Nepal Laws Amending Act, 2063 2063.06.28
8. Republic Strengthening and Some Nepal Laws Amending Act, 2066 2066.10.07
9. Some Nepal Acts Amending Act, 2072 2072.11.13
10. Acts Made to Amend Some Nepal Acts to Make Compatible with the Constitution of Nepal, 2075 2075.11.19
11. Some Nepal Acts Amending Act, 2082 2082.04.14

Act No. 22 of the year 2015

An Act Made to Make Provisions relating to Civil Aviation

Preamble: Whereas, it is desirable to control and regulate Civil Aviation so as to create circumstances encouraging the development of Civil Aviation in a manner ensuring maximum benefit to the nation from air transport, and to maintain peace and order and the convenience of the general public amended by Some Nepal Laws (Amendment and Re-organization) Act, 2020.,

This Act is hereby made and issued by His Majesty the King on the advice of the Council of Ministers. 1. Short Title, Extent and Commencement: (1) This Act may be called the "Civil Aviation Act, 2015".

(2) This Act shall extend throughout the State of Nepal and shall also apply to the following aircraft and persons: -

(a) Every citizen of Nepal, wherever he/she may be, and

(b) Every aircraft registered in Nepal omitted by Republic Strengthening and Some Nepal Laws Amending Act, 2066., and every person therein, wherever they may be.

(3) This Act shall come into force from the date specified by the Government of Nepal by publishing a notification in the Nepal Gazette commenced from 2075.4.13 (date of publication in Nepal Gazette 2075.4.17).. 2. Definitions: Unless the subject or context otherwise requires, in this Act -

(a) "Aircraft" means any machine that can derive support in the atmosphere from the reactions of the air, and this term also includes balloons, airplanes, kites, gliders, and flying machines, whether tethered or untethered.

(b) "Aerodrome" means any definite or limited water or land area intended to be used wholly or partially for the arrival, departure, and movement of aircraft, and this term also includes all buildings, sheds, vessels, boats, docks, and other structures situated in or associated with such area.

(c) "Import" means the bringing of goods into the State of Nepal.

(d) "Export" means the taking of goods out of the State of Nepal.

Inserted by Civil Aviation (Amendment) Act, 2023.(e) "Prescribed Boundary" means the place or area within the four boundaries specified by the Government of Nepal by a notification published in the Nepal Gazette.

Inserted by Fourth Amendment.(f) "Aerodrome Area" means any place, building, shed, tower, vessel, boat, or dock, whether or not any instrument and communication or navigation aid equipment used for the safe operation and control of an aerodrome or flight or for the exchange of necessary information and communication related thereto is installed. Inserted by Fourth Amendment.(g) "Air Operator Entity" means a corporation, company, agent, firm, or person established with the objective of operating air transport service undertaking the carriage of passengers, mail, and goods by aircraft. Inserted by Fourth Amendment.(h)

"Flight Training Organization (Flying School)" means an organization that provides training, instruction, and other such technical knowledge on aviation-related subjects to technicians associated with flight operations, and this term also includes Flying Clubs established for a similar purpose. Amended by Fourth Amendment.3. Power to Make Rules: (1) The Government of Nepal may make necessary rules to carry out the objectives of this Act.

(2) Without prejudice to the generality conferred by sub-section (1), rules may be made, in particular, on the following matters: -

(a) Regarding the conditions for establishing an aerodrome in any place in Nepal omitted by Republic Strengthening and Some Nepal Laws Amending Act, 2066., granting permission therefor, and fixing fees.

(b) Regarding the complete prohibition of aircraft flight in any part of the airspace of Nepal omitted by Republic Strengthening and Some Nepal Laws Amending Act, 2066., or permitting flight only under specific conditions and times.

(c) Regarding the adoption of any necessary measures for the protection of the life and body of the general public in the context of aviation.

(d) Regarding the procedure for determining the amount of compensation for loss or damage caused by the complete or partial demolition of any house, building, shed, tower, etc., in the context of aerodrome construction and operation, or by regulating, controlling, or prohibiting any kind of construction work on land of the aerodrome and aerodrome area, and designating the authority for and providing compensation.

(d) Regarding the procedure for determining the amount of compensation for loss or damage caused by the complete or partial demolition of any house, building, shed, tower, etc., in the context of aerodrome construction and operation, or by regulating, controlling, or prohibiting any kind of construction work on land of the aerodrome and aerodrome area, and designating the authority for and providing compensation.

- (e) Regarding the prohibition, control, restriction, and regulation of the transport of any substance by aircraft.
- (f) Regarding granting licenses to and fixing fees for Air Operator Entities, Flight Training Organizations (Flying Schools), and organizations engaged in the production, maintenance, and testing including overhaul of aircraft and aircraft parts amended by Some Nepal Acts Amending Act, 2082..
- (g) Regarding the conduct of aircraft search and rescue operations.
- (h) Regarding the control of aircraft noise and the prevention of environmental pollution from aircraft operations. 4.

Power of Government of Nepal to Issue Orders in Special Circumstances: (1) If deemed necessary for public safety and peace and order, the Government of Nepal may, by an order published in the Nepal Gazette, do the following: - Amended by Fourth Amendment.(a) Cancel or suspend all or any license or certificate granted under this Act or prevailing law, if the Government of Nepal has specified any conditions in such order, subject to those conditions, and if no conditions are specified, without any conditions, (b) Prohibit or regulate the flight of all or any class of aircraft over the whole of the State of Nepal or any part thereof, if the Government of Nepal has specified any conditions in such order, subject to those conditions, and if no conditions are specified, without any conditions, or regulate it in such other manner as specified in that order, (c) Prohibit or regulate, with or without conditions, the construction, maintenance, repair, or use of aerodromes, aircraft factories, flying schools or clubs, or other types of places for building, maintaining, or storing aircraft, (d) Direct that any aircraft or any class of aircraft or any aerodrome, aircraft factory, flying school or club, or other types of places for building, maintaining, or storing aircraft, along with instruments, plants, or other substances used for the operation, production, maintenance, or care of aircraft, be handed over immediately or within the time specified in that order, in the manner specified, to the custody of the designated authority; the things so handed over may be used by the Government of Nepal in the public service. (2) If any person suffers any direct loss or damage from any order issued under clause (c) or (d) of sub-section (1), the amount of compensation determined by the officer appointed for such purpose by the Government of Nepal shall be paid to such person for such loss or damage. (3) For the enforcement of any order issued under sub-section (1), the Government of Nepal may take or cause to be taken such steps as it deems necessary. Amended by Second Amendment.(4) If any person fails to comply with an order issued under sub-section (1) or does any act or thing in violation of such order, such person shall be punishable with imprisonment for up to three years or a fine of up to five thousand rupees or both. Inserted by Fourth Amendment.4A.

Power to Declare Aerodrome Area: (1) The Government of Nepal may, by publishing a notification in the Nepal Gazette, declare any area or place in Nepal omitted by Republic Strengthening and Some Nepal Laws Amending Act, 2066. as an aerodrome area, specifying its four boundaries. (2) For the security of the aerodrome area declared pursuant to sub-section (1), the Government of Nepal may make rules and make security arrangements as necessary. 5. Power of Government of Nepal to Make Rules relating to Investigation of Accidents: (1) Amended by Republic Strengthening and Some Nepal Laws Amending Act, 2066.The Government of Nepal may make rules regarding the investigation of accidents occurring while operating an aircraft over the territory of Nepal or while operating an aircraft registered in Nepal omitted by Republic Strengthening and Some Nepal Laws Amending Act, 2066. elsewhere. The rules shall come into effect after publication in the Nepal Gazette. (2) Without prejudice to the generality of the power conferred by sub-section (1), provision may be made in those rules for the following matters: - (a) Reporting of accidents, the format of such report, and the person reporting such accident, (b) Applying the provisions of Nepal law

currently in force regarding investigation of accidents to the investigation of such accidents, with or without modifications, (c) Prohibiting entry into or interference with the aircraft involved in such accident until the investigation is completed, and granting any person the right to enter such aircraft for the purposes of such investigation, inspect it, remove it, take necessary actions for its safekeeping, or otherwise deal with it, and (d) If deemed necessary in the investigation of the accident, amended by Fourth Amendment.cancelling, suspending, revoking, or requiring the surrender of any license or certificate granted or recognized under this Act or prevailing law, and requiring the production of any such license for the purpose of such investigation.

6. Power to Detain Aircraft: (1) An officer authorized for such purpose by the Government of Nepal may detain any aircraft in the following circumstances: - (a) If, considering the nature of the intended flight, there is suspicion that the flight of such aircraft may cause danger to persons therein or any other person or to anyone's property, or (b) If deemed necessary for compliance with any provision of this Act or the rules applicable to such aircraft, or to prevent violation of any rule made under clause amended by Fourth Amendment.(b) of sub-section (2) of Section 3. (2) The Government of Nepal may make rules to regulate all auxiliary or incidental matters for the exercise of the power under sub-section (1). Such rules shall come into effect after publication in the Nepal Gazette.

7. Power of Government of Nepal to Make Rules for the Protection of Public Health: The Government of Nepal may make rules to prevent danger to public health from the spread of any communicable disease from aircraft present or arriving at any aerodrome, and to prevent aircraft departing from an aerodrome from carrying such communicable disease. Such rules shall come into effect after publication in the Nepal Gazette.

8. Special Powers for the Protection of Public Health: (1) If the Government of Nepal is of the opinion that any dangerous epidemic disease is prevalent or likely to become prevalent in Nepal omitted by Republic Strengthening and Some Nepal Laws Amending Act, 2066. or any part thereof, and that other Nepal law currently in force is insufficient to prevent the danger to public health from the spread or entry of such disease by aircraft, it may take or cause to be taken such steps as it deems necessary to prevent such danger. Amended by Third Amendment.(2) For fulfilling the purpose of sub-section (1), the Government of Nepal may, by publishing a notification in the Nepal Gazette, issue necessary orders.

9. Penalty for Violating Rules Made under this Act: A person violating any rule made under Section 3, Section 5, Section 6, Section 7, and Section 8 inserted by Fourth Amendment. or an order in force shall be punishable with imprisonment for up to three months or amended by Fourth Amendment. a fine of up to ten thousand rupees or both. Inserted by Second Amendment.9A.

Offences and Penalties: (1) If any of the following acts are committed, it shall be deemed that the respective offences have been committed: - (a) Offence relating to Unauthorized Entry: If any aircraft enters Nepal omitted by Republic Strengthening and Some Nepal Laws Amending Act, 2066. without obtaining permission under this Act or prevailing law, it shall be deemed to have committed the offence of unauthorized entry. (b) Offence relating to Airspace Trespass: If any aircraft overflies the territory of Nepal omitted by Republic Strengthening and Some Nepal Laws Amending Act, 2066. without obtaining permission under prevailing law, it shall be deemed to have committed the offence of airspace trespass. (c) Offence of Unlawful Seizure and Hijacking of Aircraft: If anyone, within an aircraft in flight, unlawfully, by use of force or threat of use of force or by any other kind of intimidation, seizes or exercises control of the aircraft, it shall be deemed to have committed the offence of unlawful seizure and hijacking of aircraft. (d) Offence against Safety of Flight: If any of the following acts are committed, it shall be deemed to have committed an offence against the safety of flight: - (1) If a violent act is committed against any person within an aircraft in flight, or if such act is likely to endanger the safety of the aircraft, (2) If an aircraft in service is destroyed, or damage is caused to such aircraft rendering it incapable of flight or likely to endanger its safety in flight, (3) If a ground aircraft or parts or

equipment installed in an aircraft, or air transport facilities, or communication navigation aid equipment, or fire-fighting and rescue services and safety equipment, or related goods or articles, etc., are destroyed or damaged, or any part or component thereof is removed without authorization, or interference is caused in their operation, (4) If, knowing it to be false, any information is communicated, thereby creating a hazard to the safety of an aircraft in flight. (e) Offence against Security of Aircraft: If, by placing or causing to be placed any device or object by any means whatsoever in an aircraft in service or on the ground, there is a possibility that such device or object may destroy the aircraft or render it incapable of flight as per sub-clause (2) of clause (d), or endanger its safety in flight, it shall be deemed to have committed an offence against the security of aircraft. (f) Offence against Aerodrome Security: If communication and navigation aid equipment, visual aids, meteorological and climatological equipment, fire-fighting and rescue service related machines and equipment, other security-related equipment and machines, and other machines, equipment, buildings, runways, taxiways, aprons, hangars, etc., directly or indirectly related to aviation, or related goods, located inside or outside the aerodrome and aerodrome area, are damaged, demolished, injured, or destroyed in any manner, wholly or partially, it shall be deemed to have committed an offence against aerodrome security. (g) Offence against Security of Person Related to Air Transport: If any employee related to flight operations, any government or non-government employee working at the aerodrome, any passenger or any visitor to the aerodrome is kidnapped or taken into custody, with or without weapons, by using fear, threat, intimidation, or any other method, and diverted from their duty, or any act is done that creates a hazard or obstruction to the operation and safety of aviation in any other manner, it shall be deemed to have committed an offence against the security of a person related to air transport. (2) Attempting to commit an offence under clauses (c), (d), (e), (f), and (g) of sub-section (1), being an accomplice in committing such offence or attempting to commit such offence shall also be deemed an offence under this section. (3) A person committing an offence mentioned in sub-section (1) shall be liable to the following penalties: - (a) A person committing an offence under clauses (a) and (b) shall be liable to imprisonment from one to three years. (b) A person committing an offence under clauses (c), (d), and (e) shall be liable to life imprisonment, and a person attempting to commit or being an accomplice to such offence shall be liable to imprisonment from fifteen to twenty years. (c) A person committing an offence under clause (f) shall, in addition to making good the loss or damage caused, be liable to imprisonment from one to five years. (d) A person committing an offence under clause (g) shall be liable to imprisonment from five to ten years. (e) Notwithstanding anything written in the clauses above, if, as a result of committing any such offence, any person in the aircraft dies or the aircraft itself is destroyed, the offender shall be liable to life imprisonment and the accomplice shall be liable to life imprisonment or imprisonment from fifteen to twenty years, and the property of the offender and accomplice shall also be confiscated.

Inserted by Second Amendment.9B. Aircraft in Flight or in Service:

(a) An aircraft shall be considered to be in flight from the time all its external doors are closed following embarkation until the time any such door is opened for disembarkation. Provided that, in the case of a forced landing, until the competent authorities take over the responsibility for the aircraft and the persons and property on board, the aircraft shall be considered to be still in the state of flight.

(b) An aircraft shall be considered to be in service from the beginning of the pre-flight preparation of the aircraft by ground personnel or the crew for a specific flight until twenty-four hours after landing. The period of being in service shall, in any case, extend for the entire period the aircraft is in flight as per clause (a).

Inserted by Second Amendment.9C. Circumstances of Application of Section 9A: The provisions of Section 9A shall apply in the following circumstances: -

(1) Where the aircraft is engaged in any flight, whether international or domestic,

Provided that, in the case of an aircraft registered in a state other than Nepal, the following conditions must be met: -

(a) The actual or intended place of take-off or landing is outside the territory of the state of registration, or

(b) The offence was committed outside the territory of the state of registration.

(2) Where the offence is committed against air transport facilities. Provided that, if such facilities are located in a foreign state, such facilities must have been used for international flight. Amended by Third Amendment.9D.

Jurisdiction: Inserted by Second Amendment.(1) The courts of Nepal omitted by Republic Strengthening and Some Nepal Laws Amending Act, 2066. shall have jurisdiction over an offence under Section 9A in any of the following circumstances: - (a) Where the offence under this Act is committed within Nepal omitted by Republic Strengthening and Some Nepal Laws Amending Act, 2066., (b) Where the offence is committed on board or against an aircraft registered in Nepal omitted by Republic Strengthening and Some Nepal Laws Amending Act, 2066., (c) Where, if the offence is committed on board an aircraft, the aircraft lands in Nepal omitted by Republic Strengthening and Some Nepal Laws Amending Act, 2066. with the alleged offender still on board, (d) Where the offence is committed on board or against an aircraft leased without crew (dry lease) to a person whose principal place of business is in Nepal omitted by Republic Strengthening and Some Nepal Laws Amending Act, 2066. or, if there is no such principal place of business in Nepal omitted by Republic Strengthening and Some Nepal Laws Amending Act, 2066., whose residence is in Nepal omitted by Republic Strengthening and Some Nepal Laws Amending Act, 2066.. (2) In addition to the circumstances mentioned in sub-section (1), regardless of where an offence under Section 9A occurs anywhere else, if the alleged offender of such offence is present in Nepal omitted by Republic Strengthening and Some Nepal Laws Amending Act, 2066. and such alleged offender is not extradited under this Act or an extradition treaty to which Nepal is a party. Inserted by Second Amendment.9E. Power to Arrest: (1) If an offence under Section 9A has been or is about to be committed, the offender or alleged offender may be arrested by the authorities of the aerodrome, the pilots of the aircraft, or the authorities of the relevant air transport service, or any police personnel or omitted by Republic Strengthening and Some Nepal Laws Amending Act, 2066. members of the Nepali Army or security officers, or any person who sees the offence being committed or about to be committed, or who has reason to believe the offender or alleged offender is this person, and after arrest, they shall immediately hand over such person to the police.

Provided that, if arresting such offender or alleged offender would endanger the lives of passengers or other persons, or if there is an imminent situation of major damage to the aircraft or air transport facilities, persons other than police and security officers shall carry out the arrest only with the permission of the police or security officer.

(2) For the purpose of arrest under sub-section (1), the authorities of the aerodrome, police, and security officers may request assistance from the armed police, security officers, and omitted by Republic Strengthening and Some Nepal Laws Amending Act, 2066. the Nepali Army or other government and non-government persons, and it shall be the duty of all such persons to provide assistance if so requested.

(3) If the offender or alleged offender arrested under this section is a citizen of a foreign state, he/she shall be given the opportunity and assistance to contact the nearest appropriate representative of his/her own country, and after the completion of the arrest notification and other preliminary investigation, the findings of such

investigation and information regarding whether or not to exercise jurisdiction under this Act shall also be provided to the concerned states. Inserted by Second Amendment.9F. Power to Extradite Offender or Alleged Offender: (1) If a person committing an offence under Section 9A is a non-Nepali citizen and extradition of such person is requested by the state in whose territory or against whose registered aircraft the offence was committed, amended by Acts Made to Amend Some Nepal Acts to Make Compatible with the Constitution of Nepal, 2075. notwithstanding anything written in the Extradition Act, 2070, the Government of Nepal may extradite such person. And in the event that such person is not extradited, the case shall be prosecuted in the courts of Nepal to punish such person.

(2) For the purposes of extradition, any offence under Section 9A shall not be considered a political offence, regardless of the motive or the status of the person committing it. Amended by Fourth Amendment.9G. Return of Custody of Aircraft and Permission to Fly: If, following unlawful seizure or hijacking under clause (g) of sub-section (1) of Section 9A, any aircraft lands at any airport or place in Nepal omitted by Republic Strengthening and Some Nepal Laws Amending Act, 2066., custody of such aircraft shall be returned to the commander or the authority of the air transport service having lawful title to such aircraft, and such aircraft, together with its crew, passengers, and cargo, shall be permitted to continue its flight without any hindrance to the place from which it flew or to the place for which the flight was intended, as soon as possible. Inserted by Second Amendment.9H.

Jurisdiction under other Nepal Laws: Notwithstanding anything written in this Act regarding the punishment and proceedings for offences under Section 9A, it shall not be deemed to exclude or limit the exercise of criminal jurisdiction derived from such prevailing law. Inserted by Second Amendment.9I. Recognition of Conventions relating to Prevention of Unlawful Interference with Air Services: (1) The Government of Nepal may, in the event it becomes a party to any of the following Conventions, issue an order mentioning such Convention, the date such Convention enters into force in Nepal omitted by Republic Strengthening and Some Nepal Laws Amending Act, 2066., and other matters necessary for implementing such Convention, and such order shall be published in the Nepal Gazette: - (a) Convention on Offences and Certain Other Acts Committed on Board Aircraft, Tokyo, 1963, (b) Convention for the Suppression of Unlawful Seizure of Aircraft, The Hague, 1970, (c) Convention for the Suppression of Unlawful Acts against the Safety of Civil Aviation, Montreal, 1971 Inserted by Fourth Amendment.(d) Other Conventions specified by the Government of Nepal by publishing a notification in the Nepal Gazette. (2) An order issued pursuant to sub-section (1) shall be deemed to be part of this Act. Amended by Fourth Amendment.10. Penalty for Reckless Flying: (1) If any person operates an aircraft in a reckless manner so as to cause or likely to cause harm or damage to the life or property of any person on water, land, or in the air, or so as to cause obstruction or damage to any other aircraft, whether in flight or not, such person shall be liable to imprisonment for up to six months and a fine from fifty thousand to one hundred thousand rupees. (2) If, as a result of operating an aircraft in a reckless manner under sub-section (1), the death of any person occurs or an aircraft is destroyed as per clause (e) of sub-section (3) of Section 9A, the penalty shall be as provided in that clause. Inserted by Second Amendment.10A. Penalty for Entering Prohibited Area without Permission: (1) The Government of Nepal may, by publishing a notification in the Nepal Gazette, declare a specified area of any aerodrome specified in such notification as a prohibited area, and after such declaration, the responsibility of displaying such notice at major places around such prohibited area where the general public moves shall lie with the chief officer of the concerned aerodrome. (2) No person shall enter the prohibited area under sub-section (1) without obtaining permission from the chief officer of the concerned aerodrome.

Such search may also be conducted on the pilots of such aircraft and all workers including the officers of that

air transport service who board or go near the aircraft for the purpose of arranging that flight.

(2) A passenger or person who refuses to undergo search under sub-section (1) may be prevented from boarding or going near such aircraft.

(3) If, during the search of passengers and pilots under sub-section (1), any firearm (all types), other lethal weapons (including swords, khukuris, knives) or explosive substances (including bombs, grenades, bullets, gunpowder) are recovered, excluding imitation firearms that appear or create the illusion of being real firearms, the following actions shall be taken: -

(a) If such firearm or explosive substance is illegal, detain such passenger or person and hand over to the police for legal action.

(b) If such firearm, imitation firearm, other lethal weapon, or explosive substance is not illegal, but the passenger or person attempted to conceal or carry it without providing information even when asked, the chief officer of the aerodrome, or an employee or police officer or security officer authorized for such purpose, shall, as deemed appropriate, either hand over such real or imitation firearm, lethal weapon, or explosive substance to the aircraft commander (pilot-in-command) for sending, or detain it and allow only the passenger or pilot to proceed, or also detain the passenger or pilot and, after conducting necessary inquiry and being satisfied that no criminal intent is apparent, allow the passenger or pilot to proceed or allow the firearm, weapon, or explosive substance to be taken.

(4) If information is received or there is reason to suspect that any person has entered or is about to enter an aerodrome or any prohibited area thereof carrying any kind of firearm, imitation firearm, lethal weapon, or explosive substance with the intent to commit a criminal offence under Section 9A or under other prevailing Nepal law, the chief officer of the aerodrome, or an employee or security officer authorized for such purpose by him/her, or a police or military officer deployed for the security of the aerodrome, may, without a warrant, search the body of such person and the goods accompanying him/her, and if such firearm, other weapon, or explosive substance is recovered, shall hand over the person to the police for necessary inquiry and action.

(5) No legal liability shall incur upon any employee towards any person for any delay in flight time or any damage caused by preventing or stopping any person from boarding an aircraft or going near it or any prohibited area of the aerodrome under this section, in the course of performing his/her duty, done in good faith.

Inserted by Third Amendment. Explanation: For the purposes of this section, "pilots" shall also include flight engineers, radio officers, flight navigators, air hostesses, cabin attendants, and pursers. 11. Penalty for Abetment and Attempt to Commit Offence: If any person abets another to commit an offence punishable under this Act or the rules made under this Act by violating inserted by Fourth Amendment. aviation security provisions and other matters prescribed, or attempts to commit such offence and does any act of such nature that the offence is likely to be committed, such person shall be liable to the same punishment as that for committing the offence. Inserted by Second Amendment. 12. Authority to Try Cases and Case Proceedings: (1) The local District Court shall have the authority for the initial proceedings and adjudication of cases under this Act.

(2) While adjudicating a case, the District Court may order the confiscation of the aircraft or substance or both related to the offence under the rules made under clause (b) or (e) of sub-section (2) of Section 3 and the offence of contravening an order under sub-section (1) of Section 4, in favor of the Government of Nepal.

(3) While conducting proceedings and adjudicating cases related to offences under Section 9A, the District Court shall adopt the working procedure as per the Special Court Act, 2059.

(4) An appeal against a decision made by the District Court under sub-section (1) or (2) shall lie to the High Court within thirty-five days. 12A. Omitted by Republic Strengthening and Some Nepal Laws Amending Act, 2066

13. Power to Apply Customs Related Nepal Laws: The Government of Nepal may, by publishing a notification in the Nepal Gazette, apply all or any provisions of the prevailing Nepal laws relating to the export and import of goods, as amended in the manner specified in such notification, to the export and import of goods by air as well. 14. Restriction on Certain Complaints and Suits: No civil suit shall lie against any person merely on the ground that such person flew an aircraft over anyone's property at a certain height above the ground, if such flight was reasonable considering the wind, weather, and other circumstances, or merely on the ground of ordinary accident resulting from such flight, claiming trespass to another's property or causing loss or damage, directly or indirectly, to any person. Inserted by Second Amendment.14A. Government of Nepal to be Plaintiff: The Government of Nepal shall be the plaintiff in cases under Section 9A. Inserted by Fourth Amendment.14B.

Power to Grant Exemption: Notwithstanding anything written in the prevailing law, in respect of any person who has obtained membership of any military aviation force or has government-recognized flight-related experience and technical knowledge in civil aviation or has passed any special examination specified by the Government of Nepal, the Government of Nepal may, considering the technical knowledge and capability of such person, grant exemption as prescribed from some of the qualifications required for a license, rating, or other certificate related to air service operation. Amended by Second Amendment.14C. Power to Delegate: (1) The Government of Nepal may, by publishing a notification in the Nepal Gazette, delegate the powers vested in it under this Act and the rules made under this Act to any body or officer for exercise. (2) While delegating power under sub-section (1), the Government of Nepal may also specify the conditions and restrictions to be observed while exercising such power. 15. Protection for Acts Done in Good Faith: No suit, complaint, or other legal proceedings shall lie against any person for any act done in good faith, believing it to have been done under this Act. Omitted by Some Nepal Laws Amending Act, 2063.16. Act Not to Apply: Nothing in this Act or any rule made or order issued under this Act shall apply to aircraft of the Government of Nepal or the Nepali Army.